

FEDERAL MARITIME COMMISSION

DOCKET NO. 24-02

**L & A SHIPPING, INC., *REVOCATION OF OCEAN INTERMEDIARY
LICENSE NO. 026495***

**BUREAU OF ENFORCEMENT, INVESTIGATIONS, AND COMPLIANCE
SUBMISSION OF MATERIALS SUPPORTING NOTICE OF INTENT TO REVOKE**

Pursuant to Rule 702 of Subpart X of the Federal Maritime Commission (Commission or FMC) Rules of Practice and Procedure, 46 C.F.R. § 502.702, and the January 18, 2024 Notice and Initial Order, the Office of Enforcement (OE) within the Bureau of Enforcement, Investigations, and Compliance (BEIC) submits copies of the Notice of Intent to Revoke (Notice) issued to L & A Shipping, Inc. (L & A Shipping or Respondent) by the Bureau of Certification and Licensing (BCL), as well as an appendix of materials supporting the Notice to the presiding Administrative Law Judge (ALJ) and Respondent.

On December 18, 2023, BCL issued a Notice of Intent to Revoke the ocean transportation intermediary (OTI) License of L & A Shipping due to L & A Shipping's failure to timely publish a tariff as required by 46 U.S.C. § 40501. Moreover, L & A Shipping failed to respond to numerous inquiries of the Commission as required by 46 C.F.R. § 515.16. On January 7, 2024, pursuant to the Commission's regulations at 46 C.F.R. §§ 515.17 and 502.702, L & A Shipping submitted a timely request for a hearing to the Office of the Secretary. On January 8, 2024, the Commission issued a Notice of Hearing Request and Assignment transmitting this matter to the Office of Administrative Law Judges. On January 18, 2024, the presiding ALJ issued a Notice and Initial Order (Initial Order) advising the Bureau of Enforcement, that is now OE within BEIC,

of L & A Shipping's request for a hearing and OE's resulting obligation to provide to the ALJ and L & A Shipping a copy of BCL's Notice of Intent to Revoke and a copy of BCL's materials supporting the Notice, which are to be filed with the ALJ and served on L & A Shipping by February 19, 2024.

The Initial Order also indicated that OE may file a brief outlining its legal arguments, proposed findings of fact, and additional information. That brief would likewise be due on February 19, 2024. BEIC has considered whether to make such a filing, but respectfully declines the opportunity. BEIC will submit its reply pursuant to Rule 704 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.704, within twenty (20) days of the filing of L & A Shipping's response.

Respectfully submitted,

GRACE LEE Digitally signed by GRACE LEE
Date: 2024.02.16 14:17:53 -05'00'

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CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing document was served upon Respondent via electronic mail this 16th day of February 2024.

GRACE LEE Digitally signed by GRACE LEE
Date: 2024.02.16 14:18:18 -05'00'

Grace Lee